

25STCV37102 25STCV37102

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-08-26

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Case Number: 25STCV37102 Hearing Date: August 26, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 309

TENTATIVE RULING

DOLORES SALAS

vs.

ELEANOR VICTORIA JOHNSON, et al.

Case

No.: 25STCV37102

Hearing Date: August 26, 2026

Defendant's demurrer is OVERRULED.

On 12/18/2025, Plaintiff Dolores

Salas (Plaintiff) filed suit against Defendant Eleanor Victoria Johnson aka

Eleanor Victoria Salas Correa, alleging: (1) adverse possession; and (2) quiet title.

Discussion

Defendant argues that Plaintiff has

failed to allege sufficient facts to support her claims.

As for the first cause of action,

the elements that must be satisfied to state a cause of action for adverse

possession are: (1) Plaintiff exclusively possessed the property; (2) the

possession was continuous and uninterrupted; (3) Possession of the property was

open and easily observable, or was under circumstances that would give

reasonable notice to Defendant; (4) Plaintiff did not recognize, expressly or

by implication, that Defendant had any ownership rights in the land; (5) That

Plaintiff claimed the property as her own under color of title or a claim of

right; (6) That Plaintiff timely paid all of the taxes assessed on the property

during the five-year period. (CACI 4900.)

Defendant argues that Plaintiff

cannot show that reasonable notice was given to Defendant as he resided in

Washington State. However, Plaintiff alleges her control was “open and

notorious in that Plaintiff publicly engaged with tenants, tradespeople, and

City and State agencies in exercising her management over the Property.

(Plaintiff will provide testimonial and documentary evidence of such at time of trial.)" (Complaint ¶

26.) This is more than sufficient at the pleading stage. Defendant does not cite any legal authority which could show that Plaintiff cannot satisfy the open and notorious requirement if Defendant does not reside in state.

Defendant also argues that Plaintiff has not satisfied element five (i.e., that Plaintiff claimed the property as her own under color of title or a claim of right.) Plaintiff alleges that she believed she was the true owner of the Property. This is sufficient at the pleadings stage.

As for the second cause of action, Defendant argues that this claim fails as Plaintiff cannot state a claim for adverse possession. As set forth above, the Court disagrees.

Based on the foregoing, Defendant's demurrer is overruled.

It is so ordered.

Dated:

August , 2026

Hon. Jon R. Takasugi

Judge of the

Superior Court

Parties who intend to submit on this tentative must

send an email to the court at

by 4 p.m. the day prior as directed by the instructions provided on the court

website at www.lacourt.org. If a party submits

on the tentative, the party's email must include the case number and must

identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this

tentative as the final order. If the department

does not receive an email indicating the parties are submitting on the

tentative and there are no appearances at the hearing, the motion may be placed

off calendar. For more information, please

contact the court clerk at (213) 633-0517.